



Bill Number: S.B. 1687

Hoffman Floor Amendment

**Reference to: JUDICIARY AND ELECTIONS S/E
Committee Amendment**

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Moves the date of the primary election to the Tuesday before Memorial Day beginning with elections in 2028, rather than 2027.
2. Beginning in 2028, modifies the filing window for nomination papers from between 120 and 150 days before the primary election, to between 117 and 140 days before the primary election.
3. Beginning in 2028, requires the number of signatures necessary for nomination petitions to be based on percentages of total qualified signers as reported on October 1 of the year before the general election, rather than January 2 of the year of the general election.
4. Beginning in 2028, removes the third Tuesday in May as one of the consolidated election dates.

HOFFMAN FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1687
(Reference to JUDICIARY AND ELECTIONS S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Section 16-201, Arizona Revised Statutes, is amended to
4 read:

5 16-201. Primary elections

6 ~~[THROUGH 2026,]~~ A primary election shall be held on the second to
7 last Tuesday in July in any year in which a general election or special
8 election is held and at which candidates for public office are to be
9 elected. BEGINNING IN ~~[2027]~~ [2028] AND LATER, A PRIMARY ELECTION SHALL
10 BE HELD ON THE TUESDAY BEFORE THE LAST MONDAY IN MAY IN ANY YEAR IN WHICH
11 A GENERAL ELECTION OR SPECIAL ELECTION IS HELD AND AT WHICH CANDIDATES FOR
12 PUBLIC OFFICE ARE TO BE ELECTED.

13 Sec. 2. Section 16-204, Arizona Revised Statutes, is amended to
14 read:

15 16-204. Declaration of statewide concern; consolidated
16 election dates; definition

17 A. The legislature finds and determines that for the purposes of
18 increasing voter participation and for decreasing the costs to the
19 taxpayers it is a matter of statewide concern that all elections in this
20 state be conducted on a limited number of days and, therefore, the
21 legislature finds and declares that the holding of all elections on
22 certain specific consolidated days is a matter of statewide concern. This
23 section preempts all local laws, ordinances and charter provisions to the
24 contrary.

25 B. For elections held before 2014 and notwithstanding any other law
26 or any charter or ordinance of any county, city or town to the contrary,
27 an election held for or on behalf of a county, city or town, a school
28 district, a community college district or special districts organized
29 pursuant to title 48, chapters 5, 6, 8, 10, 13 through 16 and 33 may only
30 be held on the following dates:

1 1. Except for regular elections for candidates in a city or town
2 with a population of one hundred seventy-five thousand or more persons,
3 all elections, including recall elections and special elections to fill
4 vacancies, shall be held on:

5 (a) The second Tuesday in March.

6 (b) The third Tuesday in May.

7 (c) The tenth Tuesday before the first Tuesday after the first
8 Monday in November.

9 (d) The first Tuesday after the first Monday in November.

10 Notwithstanding any other law, an election must be held on this date for
11 the approval of an obligation or other authorization requiring or
12 authorizing the assessment of secondary property taxes by a county, city,
13 town, school district, community college district or special taxing
14 district, except as provided by title 48.

15 2. For regular elections that are only for candidates in a city or
16 town with a population of one hundred seventy-five thousand or more
17 persons and not including recall elections and special elections to fill
18 vacancies in those cities or towns, elections shall be held on:

19 (a) The tenth Tuesday before the first Tuesday after the first
20 Monday in November.

21 (b) The first Tuesday after the first Monday in November.

22 C. For elections held before 2014, for any city or town, including
23 a charter city, that holds its regularly scheduled candidate elections in
24 even-numbered years pursuant to subsection B, paragraph 2 of this section,
25 the term of office for a member of the city council or for the office of
26 mayor begins on or after the second Tuesday in January in the year
27 following the election.

28 D. Subsections B and C of this section do not apply to an election
29 regarding a county or city charter committee or county or city charter
30 proposal that is conducted pursuant to article XIII, section 2 or 3 or
31 article XII, section 5, Constitution of Arizona.

32 E. Beginning with elections held in 2014 and later and
33 notwithstanding any other law or any charter or ordinance to the contrary,
34 a candidate election held for or on behalf of any political subdivision of
35 this state other than a special election to fill a vacancy or a recall
36 election may only be held on the following dates and only in even-numbered
37 years:

38 1. ~~Beginning in~~ ~~[THROUGH]~~ 2026 ~~and later~~ ~~[THROUGH 2026]~~, the
39 second to last Tuesday in July. ~~BEGINNING IN~~ ~~[2027]~~ ~~[2028]~~ AND LATER, THE
40 ELECTION SHALL BE HELD ON THE TUESDAY BEFORE THE LAST MONDAY IN MAY. If
41 the political subdivision holds a primary or first election and a general
42 or runoff election is either required or optional for that political
43 subdivision, the first election shall be held on this date, without regard
44 to whether the political subdivision designates the election a primary
45 election, a first election, a preliminary election or any other
46 descriptive term.

1 2. The first Tuesday after the first Monday in November. If the
2 political subdivision holds a general election or a runoff election, the
3 second election held shall be held on this date. If the political
4 subdivision holds only a single election and no preliminary or primary or
5 other election is ever held for the purpose of reducing the number of
6 candidates, or receiving a partisan nomination or designation or for any
7 other purpose for that political subdivision, the single election shall be
8 held on this date.

9 F. Beginning with elections held in 2014 and later that are not
10 candidate elections, an election held for or on behalf of any political
11 subdivision of this state, and including a special election to fill a
12 vacancy or a recall election, may only be held on the following dates:

13 1. The second Tuesday in March.

14 ~~[2. The third Tuesday in May.]~~

15 ~~3.]~~ [2.] Beginning in 2026 and later THROUGH [2026] [2027], the
16 second to last Tuesday in July. BEGINNING IN [2027] [2028] AND LATER, THE
17 ELECTION SHALL BE HELD ON THE TUESDAY BEFORE THE LAST MONDAY IN MAY.

18 ~~[4.]~~ [3.] The first Tuesday after the first Monday in November.
19 Notwithstanding any other law, an election must be held on this date for
20 the approval of an obligation or other authorization requiring or
21 authorizing the assessment of secondary property taxes by a county, city,
22 town, school district, community college district or special taxing
23 district, except as provided by title 48. Notwithstanding any other law,
24 an election must be held on the date specified in this paragraph and only
25 in even-numbered years for the approval of or authorizing the assessment
26 of transaction privilege taxes by a county, city or town.

27 G. Notwithstanding any other law, for an election administered by a
28 county recorder or other officer in charge of elections on behalf of a
29 city, town or school district and that is an all mail ballot election for
30 that city, town or school district, the county recorder or other officer
31 in charge of elections may use a unified ballot format that combines all
32 of the issues applicable to the voters in the city, town or school
33 district requesting the all mail ballot election.

34 H. For the purposes of this section, "political subdivision" means
35 any governmental entity operating under the authority of this state and
36 governed by an elected body, including a city, town, county, school
37 district or community college district or any other district organized
38 under state law but not including a special taxing district.

39 Sec. 3. Section 16-206, Arizona Revised Statutes, is amended to
40 read:

41 16-206. Election day

42 A. THROUGH 2026, the biennial primary election day on the second to
43 last Tuesday in July in the year the general election is held and the
44 biennial general election day on the first Tuesday after the first Monday
45 in November of every even-numbered year are not legal holidays. BEGINNING
46 IN [2027] [2028] AND LATER, THE BIENNIAL PRIMARY ELECTION DAY ON THE
47 TUESDAY BEFORE THE LAST MONDAY IN MAY IN THE YEAR THE GENERAL ELECTION IS

1 HELD AND THE BIENNIAL GENERAL ELECTION DAY ON THE TUESDAY AFTER THE FIRST
2 MONDAY IN NOVEMBER OF EVERY EVEN-NUMBERED YEAR ARE NOT LEGAL HOLIDAYS.

3 B. Every public officer or employee is entitled to absence from
4 service or employment for the purpose of voting pursuant to section 16-402
5 on the biennial primary and general election days."

6 <<Sec. 4. Section 16-311, Arizona Revised Statutes, is amended to
7 read:

8 16-311. Nomination papers; statement of interest; filing;
9 definitions

10 A. Any person desiring to become a candidate at a primary election
11 for a political party and to have the person's name printed on the
12 official ballot shall be a qualified elector of the party and, [THROUGH
13 2026,] not less than one hundred twenty nor more than one hundred fifty
14 days before the primary election [AND BEGINNING IN 2028, NOT LESS THAN ONE
15 HUNDRED SEVENTEEN NOR MORE THAN ONE HUNDRED FORTY DAYS BEFORE THE PRIMARY
16 ELECTION], shall sign and cause to be filed a nomination paper giving the
17 person's actual residence address or, if the person does not have an
18 actual residence address, a description of place of residence and post
19 office address, or, if the person's actual residence address is protected
20 pursuant to section 16-153, a post office box or private mailbox address
21 in the candidate's district or precinct, as applicable for a district or
22 precinct office, naming the party of which the person desires to become a
23 candidate, stating the office and district or precinct, if any, for which
24 the person offers the person's candidacy, stating the exact manner in
25 which the person desires to have the person's name printed on the official
26 ballot pursuant to subsection G of this section, and giving the date of
27 the primary election and, if nominated, the date of the general election
28 at which the person desires to become a candidate. Except for a candidate
29 for United States senator or representative in Congress, a candidate for
30 public office shall be a qualified elector at the time of filing and shall
31 reside in the county, district or precinct that the person proposes to
32 represent. A candidate for partisan public office shall be continuously
33 registered with the political party of which the person desires to be a
34 candidate beginning [ππ] [NOT] later than the date of the first petition
35 signature on the candidate's petition through the date of the general
36 election at which the person is a candidate.

37 B. Any person desiring to become a candidate at any nonpartisan
38 election and to have the person's name printed on the official ballot
39 shall be at the time of filing a qualified elector of the county, city,
40 town or district and, [THROUGH 2027,] not less than one hundred twenty nor
41 more than one hundred fifty days before the election [AND BEGINNING IN
42 2028, NOT LESS THAN ONE HUNDRED SEVENTEEN NOR MORE THAN ONE HUNDRED FORTY
43 DAYS BEFORE THE ELECTION], shall sign and cause to be filed a nomination
44 paper giving the person's actual residence address or, if the person does
45 not have an actual residence address, a description of place of residence
46 and post office address, or, if the person's actual residence address is
47 protected pursuant to section 16-153, a post office box or private mailbox
48 address in the candidate's county, city, town or district and ward or

1 precinct, as applicable for a county, city, town or district and ward or
2 precinct office, stating the office and county, city, town or district and
3 ward or precinct, if any, for which the person offers the person's
4 candidacy, stating the exact manner in which the person desires to have
5 the person's name printed on the official ballot pursuant to subsection G
6 of this section and giving the date of the election. A candidate for
7 office shall reside at the time of filing in the county, city, town,
8 district, ward or precinct that the person proposes to represent.

9 C. Notwithstanding subsection B of this section, any city or town
10 may adopt by ordinance for its elections the time frame provided in
11 subsection A of this section for filing nomination petitions. The
12 ordinance shall be adopted not less than one hundred fifty days before the
13 first election to which it applies.

14 D. All persons desiring to become a candidate shall file with the
15 nomination paper provided for in subsection A of this section a
16 declaration, which shall be printed in a form prescribed by the secretary
17 of state. The declaration shall include facts sufficient to show that,
18 other than the residency requirement provided in subsection A of this
19 section and the satisfaction of any monetary penalties, fines or judgments
20 as prescribed in subsection J of this section, the candidate will be
21 qualified at the time of election to hold the office the person seeks, and
22 that for any monetary penalties, fines or judgments as prescribed in
23 subsection J of this section, the candidate has made complete payment
24 before the time of filing.

25 E. The nomination paper of a candidate for the office of United
26 States senator or representative in Congress, for the office of
27 presidential elector or for a state office, including a member of the
28 legislature, or for any other office for which the electors of the entire
29 state or a subdivision of the state greater than a county are entitled to
30 vote, shall be filed with the secretary of state [πσ] [NOI] later than
31 5:00 p.m. on the last date for filing.

32 F. The nomination paper of a candidate for superior court judge or
33 for a county, district and precinct office for which the electors of a
34 county or a subdivision of a county other than an incorporated city or
35 town are entitled to vote shall be filed with the county elections officer
36 [πσ] [NOI] later than 5:00 p.m. on the last date for filing as prescribed
37 by subsection A of this section. The nomination paper of a candidate for
38 a city or town office shall be filed with the city or town clerk [πσ]
39 [NOI] later than 5:00 p.m. on the last date for filing. The nomination
40 paper of a candidate for school district office shall be filed with the
41 county school superintendent [πσ] [NOI] later than 5:00 p.m. on the last
42 date for filing.

43 G. The nomination paper shall include the exact manner in which the
44 candidate desires to have the person's name printed on the official ballot
45 and shall be limited to the candidate's surname and given name or names,
46 an abbreviated version of such names or appropriate initials such as "Bob"
47 for "Robert", "Jim" for "James", "Wm." for "William" or "S." for "Samuel".
48 Nicknames are permissible, but nicknames, abbreviated versions or initials

1 of given names may not suggest reference to professional, fraternal,
2 religious or military titles and may not include a slogan, a promotional
3 word or phrase or any word that does not actually constitute a
4 nickname. No other descriptive name or names shall be printed on the
5 official ballot, except as provided in this section. Candidates'
6 abbreviated names or nicknames may be printed within quotation marks. The
7 candidate's surname shall be printed first, followed by the given name or
8 names.

9 H. Not later than the date of the first petition signature on a
10 nomination petition, a person who may be a candidate for office pursuant
11 to this section shall file a statement of interest with the appropriate
12 filing officer for that office. The statement of interest shall contain
13 the name of the person, the political party, if any, and the name of the
14 office that may be sought. Any nomination petition signatures collected
15 before the date the statement of interest is filed are invalid and subject
16 to challenge. This subsection does not apply to:

17 1. Candidates for elected office for special taxing districts that
18 are established pursuant to title 48.

19 2. Candidates for precinct committeeman.

20 3. Candidates for president or vice president of the United States.

21 I. A person who does not file a timely nomination paper that
22 complies with this section is not eligible to have the person's name
23 printed on the official ballot for that office. The filing officer shall
24 not accept the nomination paper of a candidate for state or local office
25 unless the person provides or has provided all of the following:

26 1. The financial disclosure statement as prescribed for candidates
27 for that office.

28 2. The declaration of qualification and eligibility as prescribed
29 in subsection D of this section.

30 J. Except in cases where the liability is being appealed, the
31 filing officer shall not accept the nomination paper of a candidate for
32 state or local office if the person is liable for an aggregation of \$1,000
33 or more in fines, penalties, late fees or administrative or civil
34 judgments, including any interest or costs, in any combination, that have
35 not been fully satisfied at the time of the attempted filing of the
36 nomination paper and the liability arose from failure to comply with or
37 enforcement of chapter 6 of this title.

38 K. For the purposes of this title:

39 1. "Election district" means this state, any county, city, town,
40 precinct or other political subdivision or a special district that is not
41 a political subdivision, that is authorized by statute to conduct an
42 election and that is authorized or required to conduct its election in
43 accordance with this title.

44 2. "Nomination paper" means the form filed with the appropriate
45 office by a person wishing to declare the person's intent to become a
46 candidate for a particular political office.>>

1 <<Sec. 5. Section 16-314, Arizona Revised Statutes, is amended to
2 read:

3 16-314. Filing and form of nomination petitions; definition

4 A. Any person ~~[desiring]~~ [WHO DESIRES] to become a candidate at any
5 election and to have the person's name printed on the official ballot
6 shall file, [THROUGH 2026.] not less than one hundred twenty nor more than
7 one hundred fifty days before the primary election [AND BEGINNING IN 2028,
8 NOT LESS THAN ONE HUNDRED SEVENTEEN NOR MORE THAN ONE HUNDRED FORTY DAYS
9 BEFORE THE PRIMARY ELECTION.] and with the same officer as provided by
10 section 16-311, a nomination petition in addition to the nomination paper
11 required.

12 ~~[C.]~~ [B.] Nomination petitions shall be captioned "partisan
13 nomination petition" or "nonpartisan nomination petition", followed by the
14 language of the petition in substantially the following form, except that
15 if the candidate does not have an actual residence address, the candidate
16 may use a description of place of residence and post office address, or,
17 if the candidate's actual residence address is protected pursuant to
18 section 16-153, a post office box or private mailbox address in the
19 candidate's political division or district from which the nomination is
20 sought is sufficient:

21 Partisan Nomination Petition

22 I, the undersigned, a qualified elector of the county of
23 _____, state of Arizona, and of (here name political
24 division or district from which the nomination is sought) and
25 a member of the _____ party or a person who is
26 registered as no party preference or independent as the party
27 preference or who is registered with a political party that is
28 not qualified for representation on the ballot, hereby
29 nominate _____ who resides at _____ in the
30 county of _____ for the party nomination for the office
31 of _____ to be voted at the primary election to be
32 held _____ as representing the principles of such
33 party, and I hereby declare that I am qualified to vote for
34 this office and that I have not signed, and will not sign, any
35 nomination petition for more persons than the number of
36 candidates necessary to fill such office at the next ensuing
37 election. I further declare that if I choose to use a post
38 office box address on this petition, my residence address has
39 not changed since I last reported it to the county recorder
40 for purposes of updating my voter registration file.

41 Nonpartisan Nomination Petition

42 I, the undersigned, a qualified elector of the county of
43 _____, state of Arizona, and of (here name political
44 division or district from which the nomination is sought)
45 hereby nominate _____ who resides at _____
46 in the county of _____ for the office of
47 _____ to be voted at the _____ election to
48 be held _____, and hereby declare that I am

1 qualified to vote for this office and that I have not signed
2 and will not sign any nomination petitions for more persons
3 than the number of candidates necessary to fill such office at
4 the next ensuing election. I further declare that if I choose
5 to use a post office box address on this petition, my
6 residence address has not changed since I last reported it to
7 the county recorder for purposes of updating my voter
8 registration file.

9 ~~[B.]~~ [C.] The nomination petition of a person seeking to fill an
10 unexpired vacant term for any public office shall designate the expiration
11 date of the term following the name of the office being sought.

12 ~~[B.]~~ [D.] For the purposes of this title, "nomination petition"
13 means the form or forms used for obtaining the required number of
14 signatures of qualified electors, which is circulated by or on behalf of
15 the person wishing to become a candidate for a political office.>>

16 <<Sec. 6. Section 16-322, Arizona Revised Statutes, is amended to
17 read:

18 16-322. Number of signatures required on nomination petitions

19 A. Nomination petitions shall be signed by a number of qualified
20 signers equal to:

21 1. If for a candidate for the office of United States senator or
22 for a state office, excepting members of the legislature and superior
23 court judges, at least one-fourth of one percent but not more than ten
24 percent of the total number of qualified signers in ~~[the]~~ [THIS] state.

25 2. If for a candidate for the office of representative in Congress,
26 at least one-half of one percent but not more than ten percent of the
27 total number of qualified signers in the district from which the
28 representative shall be elected except that if for a candidate for a
29 special election to fill a vacancy in the office of representative in
30 Congress, at least one-fourth of one percent but not more than ten percent
31 of the total number of qualified signers in the district from which the
32 representative shall be elected.

33 3. If for a candidate for the office of member of the legislature,
34 at least one-half of one percent but not more than three percent of the
35 total number of qualified signers in the district from which the member of
36 the legislature may be elected.

37 4. If for a candidate for a county office or superior court judge,
38 at least one percent but not more than ten percent of the total number of
39 qualified signers in the county or district, except that if for a
40 candidate from a county with a population of two hundred thousand persons
41 or more, at least one-fourth of one percent but not more than ten percent
42 of the total number of qualified signers in the county or district.

1 5. If for a candidate for a community college district, at least
2 one-quarter of one percent but not more than ten percent of the total
3 voter registration in the precinct as established pursuant to section
4 15-1441. Notwithstanding the total voter registration in the community
5 college district, the maximum number of signatures required by this
6 paragraph is one thousand.

7 6. If for a candidate for county precinct committeeman, at least
8 two percent but not more than ten percent of the party voter registration
9 in the precinct or ten signatures, whichever is less.

10 7. If for a candidate for justice of the peace or constable in a
11 county with a population of one million persons or more, at least one
12 percent but not more than ten percent of the number of qualified signers
13 in the precinct.

14 8. If for a candidate for justice of the peace or constable in a
15 county with a population of less than one million persons, at least one
16 percent but not more than ten percent of the number of qualified signers
17 in the precinct or three hundred signatures, whichever is less.

18 9. If for a candidate for mayor or other office nominated by a city
19 at large, at least five percent and not more than ten percent of the
20 designated party vote in the city, except that a city that chooses to hold
21 nonpartisan elections may provide by ordinance that the minimum number of
22 signatures required for the candidate be one thousand signatures or five
23 percent of the vote in the city, whichever is less, but not more than ten
24 percent of the vote in the city.

25 10. If for an office nominated by ward, precinct or other district
26 of a city, at least five percent and not more than ten percent of the
27 designated party vote in the ward, precinct or other district, except that
28 a city that chooses to hold nonpartisan elections may provide by ordinance
29 that the minimum number of signatures required for the candidate be two
30 hundred fifty signatures or five percent of the vote in the district,
31 whichever is less, but not more than ten percent of the vote in the
32 district.

33 11. If for a candidate for an office nominated by a town at large,
34 by a number of qualified electors who are qualified to vote for the
35 candidate whose nomination petition they are signing equal to at least
36 five percent and not more than ten percent of the vote in the town, except
37 that a town that chooses to hold nonpartisan elections may provide by
38 ordinance that the minimum number of signatures required for the candidate
39 be one thousand signatures or five percent of the vote in the town,
40 whichever is less, but not more than ten percent of the vote in the town.

41 12. If for a candidate for a governing board of a school district
42 or a career technical education district, at least one-half of one percent
43 of the total voter registration in the school district or career technical
44 education district if the board members are elected at large or one
45 percent of the total voter registration in the single member district if
46 governing board members are elected from single member districts or
47 one-half of one percent of the total voter registration in the single
48 member district if career technical education district board members are

1 elected from single member districts. Notwithstanding the total voter
2 registration in the school district, career technical education district
3 or single member district of the school district or career technical
4 education district, the maximum number of signatures required by this
5 paragraph is four hundred.

6 13. If for a candidate for a governing body of a special district
7 as described in title 48, at least one-half of one percent of the vote in
8 the special district but not more than two hundred fifty and not fewer
9 than five signatures.

10 B. [THROUGH 2027.] the basis of percentage in each instance
11 referred to in subsection A of this section, except in cities, towns and
12 school districts, shall be the number of qualified signers as determined
13 from the voter registration totals as reported pursuant to section 16-168,
14 subsection H on January 2 of the year in which the general election is
15 held [AND BEGINNING IN 2028, FROM THE VOTER REGISTRATION TOTALS AS
16 REPORTED PURSUANT TO SECTION 16-168, SUBSECTION H ON OCTOBER 1 OF THE YEAR
17 BEFORE THE YEAR IN WHICH THE GENERAL ELECTION IS HELD]. In cities, the
18 basis of percentage shall be the vote of the party for mayor at the last
19 preceding election at which a mayor was elected. In towns, the basis of
20 percentage shall be the highest vote cast for an elected official of the
21 town at the last preceding election at which an official of the town was
22 elected. In school districts or career technical education districts, the
23 basis of percentage shall be the total number of active registered voters
24 in the school district or career technical education district or single
25 member district, whichever applies. The total number of active registered
26 voters for school districts or career technical education districts shall
27 be calculated using the periodic reports prepared by the county recorder
28 pursuant to section 16-168, subsection H. [THROUGH 2026.] the count that
29 is reported on January 2 of the year in which the general election is held
30 [AND BEGINNING IN 2028, THE COUNT THAT IS REPORTED ON OCTOBER 1 OF THE
31 YEAR BEFORE THE YEAR IN WHICH THE GENERAL ELECTION IS HELD] shall be the
32 basis for the calculation of total voter registration for school districts
33 or career technical education districts.

34 C. In primary elections the signature requirement for party
35 nominees, other than nominees of the parties entitled to continued
36 representation pursuant to section 16-804, is at least one-tenth of one
37 percent of the total vote for the winning candidate or candidates for
38 governor or presidential electors at the last general election within the
39 district. Signatures must be obtained from qualified electors who are
40 qualified to vote for the candidate whose nomination petition they are
41 signing.

42 D. If new boundaries for congressional districts or legislative
43 districts are established and effective subsequent to January 2 of the
44 year of a general election and before the first date for filing of
45 nomination petitions, the basis for determining the required number of
46 nomination petition signatures is the number of qualified signers in the
47 elective office or district that was effective on [January 2] [OCTOBER 1]
48 of [THE YEAR BEFORE] the year of a general election. If new boundaries

1 for supervisorial districts, justice precincts or election precincts are
2 adopted after January 2 of the year of a general election and before the
3 last date for filing of nomination petitions for the elective office,
4 district or precinct, the basis for determining the required number of
5 nomination petition signatures is the number of qualified signers in the
6 elective office, district or precinct on the effective date of the new
7 district or precinct.>>

8 <<Sec. 7. Section 16-341, Arizona Revised Statutes, is amended to
9 read:

10 16-341. Nomination petition; method and time of filing; form;
11 qualifications and number of petitioners required;
12 statement of interest

13 A. Any qualified elector who is not a registered member of a
14 political party that is recognized pursuant to this title may be nominated
15 as a candidate for public office otherwise than by primary election or by
16 party committee pursuant to this section.

17 B. This article shall not be used to place on the general election
18 ballot the name of a political party that fails to meet the qualifications
19 specified in section 16-802 or 16-804, or the name of any candidate
20 representing such party or the name of a candidate who has filed a
21 nomination petition in the immediately preceding primary election and has
22 failed to qualify as the result of an insufficient number of valid
23 signatures.

24 C. A nomination petition stating the name of the office to be
25 filled, the name and residence of the candidate, or, if the candidate does
26 not have an actual residence address, a description of place of residence
27 and post office address, or, if the person's actual residence address is
28 protected pursuant to section 16-153, a post office box or private mailbox
29 address in the candidate's district, precinct or municipality, as
30 applicable for a district, precinct or municipal office, and other
31 information required by this section shall be filed with the same officer
32 with whom primary nomination papers and petitions are required to be filed
33 as prescribed in section 16-311. Except for candidates for the office of
34 presidential elector filed pursuant to this section, [THROUGH 2026,] the
35 petition shall be filed not less than one hundred twenty days nor more
36 than one hundred fifty days before the primary election [AND BEGINNING IN
37 2028, NOT LESS THAN ONE HUNDRED SEVENTEEN NOR MORE THAN ONE HUNDRED FORTY
38 DAYS BEFORE THE PRIMARY ELECTION]. The petition shall be signed only by
39 voters who have not signed the nomination petitions of a candidate for the
40 office to be voted for at that primary election.

41 D. The nomination petition shall be in substantially the following
42 form, except that if the candidate does not have an actual residence
43 address, the candidate may use a description of place of residence and
44 post office address, or, if the candidate's actual residence address is
45 protected pursuant to section 16-153, a post office box or private mailbox
46 address in the candidate's district, precinct or municipality, as
47 applicable for a district, precinct or municipal office, is sufficient:

1 The undersigned, qualified electors of _____
2 county, state of Arizona, do hereby nominate _____, who
3 resides at _____ in the county of _____, as a
4 candidate for the office of _____ at the general (or
5 special, as the case may be) election to be held on the
6 _____ day of _____, ____.

7 I hereby declare that I have not signed the nomination
8 petitions of any candidate for the office to be voted for at
9 this primary election, and I do hereby select the following
10 designation under which name the said candidate shall be
11 placed on the official ballot (here insert such designation
12 not exceeding three words in length as the signers may
13 select).

14 E. The nomination petition shall conform as nearly as possible to
15 the provisions relating to nomination petitions of candidates to be voted
16 for at primary elections and shall be signed by at least the number of
17 persons who are registered to vote determined by calculating three percent
18 of the persons who are registered to vote of the state, county,
19 subdivision or district for which the candidate is nominated who are not
20 members of a political party that is qualified to be represented by an
21 official party ballot at the next ensuing primary election and accorded
22 representation on the general election ballot.

23 F. The percentage of persons who are registered to vote necessary
24 to sign the nomination petition shall be determined by the total number of
25 registered voters from other than political parties that are qualified to
26 be represented by an official party ballot at the next ensuing primary
27 election and accorded representation on the general election ballot in the
28 state, county, subdivision or district on ~~[January 2]~~ [OCTOBER 1] of the
29 year [BEFORE THE YEAR] in which the general election is
30 held. Notwithstanding the method prescribed by subsection E of this
31 section and this subsection for calculating the minimum number of
32 signatures necessary, any person who is registered to vote in the state,
33 county, subdivision or district for which the candidate is nominated is
34 eligible to sign the nomination petition without regard to the signer's
35 party affiliation.

36 G. A nomination petition for any candidate may be circulated by a
37 person who is not a resident of this state but who is otherwise eligible
38 to register to vote in this state if that person registers as a circulator
39 with the secretary of state before circulating petitions. The nomination
40 petition for the office of presidential elector shall include a group of
41 names of candidates equal to the number of United States senators and
42 representatives in Congress from this state instead of separate nomination
43 petitions for each candidate for the office of presidential elector. A
44 valid signature on a petition containing a group of presidential electors
45 candidates is counted as a signature for the nomination of each of the
46 candidates. The presidential candidate whom the candidates for
47 presidential elector will represent shall designate in writing to the
48 secretary of state the names of the candidates who will represent the

1 presidential candidate before any signatures for the candidate can be
2 accepted for filing. A nomination petition for the office of presidential
3 elector shall be filed not less than eighty nor more than one hundred days
4 before the general election. The petition shall be signed only by
5 qualified electors who have not signed the nomination petitions of a
6 candidate for the office of presidential elector to be voted for at that
7 election.

8 H. The secretary of state shall require in the instructions and
9 procedures manual issued pursuant to section 16-452 that persons who
10 circulate nomination petitions pursuant to this section and who are not
11 residents of this state but who are otherwise eligible to register to vote
12 in this state shall register as circulators with the office of the
13 secretary of state before circulating petitions. The secretary of state
14 shall provide for a method of receiving service of process for those
15 petition circulators who are registered.

16 I. Not later than the date of the first petition signature on a
17 nomination petition, a person who may be a candidate for office pursuant
18 to this section shall file a statement of interest with the appropriate
19 filing officer for that office. The statement of interest shall contain
20 the name of the person, the political party, if any, and the name of the
21 office that may be sought. Any nomination petition signatures collected
22 before the date the statement of interest is filed are invalid and subject
23 to challenge. This subsection does not apply to:

24 1. Candidates for elected office for special taxing districts that
25 are established pursuant to title 48.

26 2. Candidates for precinct committeeman.

27 3. Candidates for president or vice president of the United States.

28 J. A person who files a nomination paper pursuant to this section
29 for the office of president of the United States shall designate in
30 writing to the secretary of state at the time of filing the name of the
31 candidate's vice presidential running mate, the names of the presidential
32 electors who will represent that candidate and a statement that is signed
33 by the vice presidential running mate and the designated presidential
34 electors and that indicates their consent to be designated. A nomination
35 paper for each presidential elector designated shall be filed with the
36 candidate's nomination paper. The number of presidential electors shall
37 equal the number of United States senators and representatives in Congress
38 from this state.

39 K. A candidate who does not file a timely nomination petition that
40 complies with this section is not eligible to have the candidate's name
41 printed on the official ballot for that office. The filing officer shall
42 not accept the nomination paper of a candidate for state or local office
43 unless the candidate provides or has provided all of the following:

44 1. The financial disclosure statement as prescribed for candidates
45 for that office.

46 2. The declaration of qualification and eligibility as prescribed
47 in section 16-311.

1 L. Not later than sixty days before the date of the general
2 election, a candidate for governor who files a nomination petition
3 pursuant to this section shall submit to the secretary of state the name
4 of the person who will be the joint candidate for lieutenant governor with
5 that gubernatorial candidate and whose name will appear on the general
6 election ballot jointly with the candidate for governor.

7 M. Except in cases where the liability is being appealed, the
8 filing officer shall not accept the nomination paper of a candidate for
9 state or local office if the person is liable for an aggregation of \$1,000
10 or more in fines, penalties, late fees or administrative or civil
11 judgments, including any interest or costs, in any combination, that have
12 not been fully satisfied at the time of the attempted filing of the
13 nomination paper and the liability arose from failure to comply with or
14 enforcement of chapter 6 of this title.

15 N. The secretary of state may authorize for statewide and
16 legislative offices the creation, use and submission of petitions
17 prescribed by this section in electronic form if those petitions provide
18 for an appropriate method to verify signatures of petition circulators and
19 signers. The secretary of state may require use of a unique marking system
20 for petition pages, including a bar code, a quick response code or another
21 similar marking system.>>

22 Enroll and engross to conform

23 Amend title to conform

JAKE HOFFMAN

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